

PART III.

DUTIES ON SPIRITS.

Nature of Spirits.	Rate of Duty.		
	£	s.	d.
Brandy, Geneva and other foreign spirits - - - - -	1	7	6
Rum, including shrub of the British Possessions - - - - -	1	7	6
British and Irish spirits not otherwise exempted from the payment of duty - - - - -	1	7	6
Liqueurs, cordials, and mixed or sweetened spirits - - - - -	1	7	6
All such spirits to be computed at hydrometer proof provided that where a person importing liqueurs, cordials, or mixed or sweetened spirits in bottle has entered same in such manner as to indicate that the strength is not to be tested, duty shall be levied and paid at the rate of - - - - -	1	12	6
Perfumed spirits - - - - -	1	14	8

CHAPTER 42.

An Act to amend the Acts relating to Loans to Incumbents of Benefices by Queen Anne's Bounty.

[21st November 1918.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. This Act and the Acts specified in the First Schedule hereto (which are in this Act referred to as the principal Acts) shall be read and construed together as one Act. Construction and interpretation.

2. A loan for the purposes of the principal Acts or any of them made by Queen Anne's Bounty in accordance with the regulations contained in the Second Schedule to this Act, and a charge made for securing the loan, shall be as valid and effectual to all intents as if the parties thereto had complied in all respects with the provisions contained in the principal Acts or any of them for obtaining, securing and expending loans. The regulations contained in the Second Schedule may from time to time be revoked, varied or amended by regulations proposed to His Majesty by Queen Anne's Bounty and by His Majesty approved under His Sign Manual. As to regulations for obtaining loans from Queen Anne's Bounty for the purposes of the principal Acts.

3. The powers of charging the revenues and possessions of a benefice exercisable under the principal Acts or any of them, or this Act, by the incumbent thereof may for the purpose of obtaining a loan from Queen Anne's Bounty be exercised during the vacancy of the benefice by the sequestrator or sequestrators thereof. Power to sequestrators to borrow on mortgage during vacancy of benefice.

Mortgage or other debt charged on glebe in favour of Queen Anne's Bounty to pass to proceeds in case of sale.

4. Any messuage, building, land, or other hereditament belonging to or held in trust for a benefice and subject to a mortgage or charge (whether under this Act or any other Act) in favour of Queen Anne's Bounty shall, when sold and conveyed by the incumbent of the benefice under any statutory authority, vest in the purchaser discharged from such mortgage or charge without any release by, or concurrence in the conveyance of, Queen Anne's Bounty, but such mortgage or charge shall attach to the purchase money of the property sold, and Queen Anne's Bounty shall have the like remedies as nearly as may be in relation to such purchase money as they would have had against the property sold if the same had not been sold.

Power to apply proceeds of sale of glebe, &c., in discharge of loan by Queen Anne's Bounty.

5. Any money which has arisen or may arise from the sale of any messuage, building, or land belonging to or held in trust for a benefice, and purchased, built, or improved either wholly or in part by means of money lent by Queen Anne's Bounty under the principal Acts or any of them, or this Act, may, with the consent of Queen Anne's Bounty, be applied in discharge of any principal sum charged on the benefice or any of the possessions thereof in respect of the money so lent.

35 & 36 Vict. c. 96 to apply.

6. The Ecclesiastical Dilapidations Act, 1872, shall apply to a loan made under the provisions of this Act in like manner as to a loan made under the provisions of the principal Acts or any of them.

Act to apply to loans to deans and canons under 3 & 4 Vict. c. 113. s. 59.

7. The provisions of this Act shall apply mutatis mutandis to a loan made by Queen Anne's Bounty to a dean or canon under the provisions of section fifty-nine of the Ecclesiastical Commissioners Act, 1840.

Short title.

8. This Act may be cited as the Loans (Incumbents of Benefices) Amendment Act, 1918.

SCHEDULES.

THE FIRST SCHEDULE.

Section 1

17 Geo. 3. c. 53. The Clergy Residences Repair Act, 1776; the Clergy Residences
21 Geo. 3. c. 66. Repair Act, 1780; the Clergy Residence Act, 1826; the Parsonages
7 Geo. 4. c. 66. Act, 1838; and the Parsonages Act, 1865.
1 & 2 Vict.
c. 23.
28 & 29 Vict.
c. 69.

THE SECOND SCHEDULE.

Section 2.

REGULATIONS.

1. The incumbent of a benefice who is desirous of obtaining from Queen Anne's Bounty a loan for any of the purposes of the principal Acts or any of them shall transmit to Queen Anne's Bounty—

(a) a statement under the hand of the incumbent of the annual profits of the benefice ; and

(b) such of the following documents as may be applicable :—

(i) A short statement under the hand of some experienced workman or surveyor as to the condition of the buildings to be repaired, improved, or added to, and as to the necessity of the proposed works ;

(ii) a specification by such workman or surveyor of the proposed works, together with an estimate of the cost thereof, and such plan or plans (if any) as Queen Anne's Bounty may require ;

(iii) a plan and valuation by some experienced surveyor of the land or buildings proposed to be purchased ;

(iv) a valuation by some experienced surveyor of the fixtures proposed to be purchased.

2. Queen Anne's Bounty shall thereupon, if they think fit, make inquiry into the condition of the buildings on the glebe, and as to the value of the timber or other materials thereon fit to be employed for repairs or for building, or to be sold.

3. If Queen Anne's Bounty shall entertain the application for a loan for the purposes or any of the purposes for which it is asked, the incumbent shall notify the ordinary and patron of the benefice, and also, in the case of a benefice affected by section 13 of the Ecclesiastical Houses of Residence Act, 1842, the Ecclesiastical Commissioners, of the proposed loan, and obtain their consents thereto in such form as Queen Anne's Bounty may think proper, and it shall not be necessary for the ordinary, before he shall signify his consent to the loan, to cause an inquiry to be made or certified to him.

4. In case the patrons are more than two in number the consent to the loan of the majority of the patrons shall be sufficient.

5. Queen Anne's Bounty, whenever it shall appear to them that any works should be executed without delay, may, so soon as the plan (if any) and estimate of the proposed works have been approved by them, authorise the immediate execution thereof, and a loan granted for the works shall be as valid as if the prescribed consent had been executed by the ordinary and patron before the commencement of the works, but no loan shall be actually made until the prescribed consent has been executed. It shall be lawful for Queen Anne's Bounty to delegate to their treasurer the power of determining whether any works should be executed without delay, and, in any such case, of approving the estimate and plan (if any) and of authorising the commencement of the works, and a certificate under his hand that the commencement of the works has been authorised shall be conclusive evidence of such authorisation.

6. Queen Anne's Bounty may, without any further consent of the ordinary or patron, allow during the execution of any proposed works such alteration to be made therein as may appear to them to be desirable for the better execution of the works.

7. As soon as the deed of security for a loan shall be completed the amount of the loan shall be placed by Queen Anne's Bounty to the credit of an account in their books to be entitled "Loan Account No. 1 (*2 or 3 as the case may be*) of the benefice of ". The money standing to the credit of the said account shall be paid by Queen Anne's Bounty for or towards the objects for which the loan was made, or Queen Anne's Bounty may, on the request of the Ecclesiastical Commissioners, transfer the same money or any part thereof to the Ecclesiastical Commissioners to be by them paid for or towards those objects. Queen Anne's Bounty or the Ecclesiastical Commissioners (as the case may be) may for the purpose of paying the same money accept such certificates, statement of account, or vouchers as they may respectively think proper.

8. Any surplus standing to the credit of the loan account of a benefice under this Act may be applied by Queen Anne's Bounty in payment for extras arising in the execution of the works for which the loan was made, but, subject to any such payment thereout, the surplus shall be applied in reduction of the principal debt.

CHAPTER 43.

An Act to amend the Midwives Act, 1902.

[21st November 1918.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

CENTRAL MIDWIVES BOARD.

Future revision of constitution of Central Midwives Board.

1.—(1) The Central Midwives Board may at any time represent to the Privy Council that it is expedient to modify the constitution of the Board either by—

- (a) increasing or diminishing the number of persons appointed by any body or person ; or
- (b) abolishing the power of appointment by any body or person ; or
- (c) conferring on any body or person a power of appointment of one or more persons ; or
- (d) altering the term of office or qualifications of any members.

(2) The Privy Council before considering such representation shall cause it to be laid before both Houses of Parliament.

(3) If either House of Parliament within forty days (exclusive of any period of adjournment for more than one week) next after such representation has been laid before the House presents an address to His Majesty declaring that the representation or any part thereof ought not to be given effect to, no further proceedings shall be taken in respect of the representation in regard to which the address has been presented ; but, if no such address is presented by either House within such forty days as aforesaid, the Privy Council may, if they think fit, report to His